ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	163rd Commission Meeting
DATE:	7 February 2024
TIME:	02:00 PM
VENUE:	*Druk Dradhir Khang*

#	AGENDA & DISCUSSION	DECISION
1	Update on the session to the Members of the Parliament of the NA & NC as part of the NACD commemoration – DoPE *Kinley Pem, ED, DoPE presented the tentative program for the Members of the Parliament of the NA & NC on 8th and 9th February 2024 respectively as part of the NACD commemoration.* *Tentative Program attached.*	**Approved the program with specific directives to:** - **ensure similar content for both the Houses and limit to one or two presenters with emphasis on PII, TI-CPI, and brief highlights on the fundamental principles and guiding framework on IVS, complaints management, integrity promotion tools (AD, CoI, Gift & e-Learning course).** - **exclude proposed presentation on scoping study given that it is more for internal consumption.** - **attend session by full Commission accompanied by few relevant Heads of Departments/Divisions and presenters.**
2	Regular HR Update – HRS *HRS appraised the Commission on the 134th HRC meeting as follows:* - *Revision in the nomination for OECD event.* - *Endorsement on the request for LTT recommendation and translation of appointment letter.* - *Consultation with the staff on the Draft Transfer Policy to include comprehensive issues and opportunities.* - *Draft mandatory training structure including its content, resource persons and relevant participants.* - *Proposal for onward submission to*	**Noted the decisions with specific directives to:** - **ensure that the participants for the mandatory training are determined based on the number of years as well as the existing level of skills. Those on contract to be considered based on the contract renewal status.** - **explore including those officials with foundational level skills irrespective of their position, particularly for sessions on data analysis skills.** - **move the session on the IVS and other basic contents to the sectoral course.**

	the RCSC regarding the calculation of duration for the study period vis-a-vis service obligation for Thinley Tobgay. - *Update on the RCSC's decision to decline the ACC's proposal to upgrade ACRS to a Division.*	- **ensure sensitivity of the session on intelligence and surveillance by restricting to most relevant officials.** - **develop annual mandatory training course module for all the proficiency levels viz. foundation, intermediate & advanced, enabling all staff to upgrade their competence and augment critical staff.** - **optimize mandatory training to build internal resource for sustainable knowledge management.** - **coordinate bilateral meetings between the LDs of the RCSC and ACC, led by the HRC Chair, to discuss issues concerning the clarity on the implementation of existing MoU including emerging issues and accordingly apprise on the way forward.** - **encourage individuals to work on articles for publication towards aligning with the existing criteria for specialist positions.** - **explore P2 leadership trainings slots for officials heading the Divisions.**
3	Update on the interventions related to PME staff – HRS *HRS appraised the Commission on the following interventions initiated against individuals falling under PME as follows:* • *provided online trainings & coaching including facilitation of peer feedback to strengthen library management.* • *provided platforms to undertake roles like MTO & coordination of FC & TC meetings to shoulder higher responsibilities.*	**Noted**
4	Update on Escrow Account for January 2024 – DoPS *EMD, DoPS appraised the Commission on the status of Escrow Account with the opening balance of Nu.22196,899.31 and closing balance of Nu.22,531,633.94 as of 31 January 2024.* *Detailed PowerPoint slide attached.*	**Noted**

5	Present second draft research proposals on Election & Forestry Services – DoPE *EAD, DoPE presented the second draft research proposals on election and forestry services after incorporating the comments received during the 159th Commission meeting.*	**Approved both the proposals with following specific directives to:** • **discuss within the Department regarding the conduct of research on forestry services to minimize administrative burden and service disruption of the agency concerned as the PD is already in the field with the same agency to conduct study system on timber export. To this, exclude dredging and surface collection from the scope of research.** • **ensure complete onboarding of the ECB to not only facilitate the process but also complement respective mandates with remedial measures after the conduct of research.** • **include polling officers, party workers, and candidates to expand the scope of respondents and enrich sample pattern.** • **revisit the two questions related to elections for more clarity.**
6	Update on the consultation on Gift Rules 2017 – LD *LD presented on the comments and feedback received on the Gift Rules 2017 during the consultation meeting held with 21 agencies in three different sessions against the invitation extended to 27 agencies scoring poor in the OIP implementation as follows:* • *weak implementation among agencies as only 10 reported to have adopted gift register that too as an obligation under the OIP but were never used.* • *poor demonstration of leadership by the HoAs in internalizing the provisions.* • *low threshold value for acceptability of gifts against strong societal norm of offering like doma, making it impracticable.* • *limited clarity in managing and monitoring gifts especially in the corporate setup wherein corporate*	**Noted the comments and feedback received during the consultation and directed as follows:** - **ED, DoPE to continue advocacy on the general principles and rationale behind declaring and managing gifts during the upcoming Thematic sessions.** - **LD to explore conducting general survey to facilitate informed decision and bring clarity in the Rules by March 2024.**

	souvenirs are commonly available but at the same time targeted to certain group of audiences and serves as one of the important marketing tools. Further, it does not provide the incentive for individuals in the corporate sector without linkage to any reward/bonus system. • *poor awareness in the agencies on the administration and management of gifts, hence often considering as an additional work.* • *Challenging for the GDAs to monitor.* *Considering the above issues and challenges, following were some of the suggestions made:* • *integrate into the existing service rules and regulations of the agencies for greater ownership.* • *develop as a model guide for customization at the agency level depending on the nature of the agency.* • *accord flexibility for the agencies to determine prohibited sources based on the vulnerability of services.* • *designate LOs as the GDA for better enforcement and compliance regime.*	
7	Consultation meeting on the Debarment Rules 2023 – LD *LD appraised on the request from the DPP, MoF to host a session on the implementation of Debarment Rules 2023.*	**Approved and directed LD to involve DG, DoI including the Committee members, if constituted, emphasizing the critical need for onboarding of the DPP for effective enforcement of the Rules.**
8	Present final draft Policy & Procedure on Proactive Investigation – PPD	**Deferred**
9	Priorities for the FY 2024-2025 – PPD *PPD presented the status on the milestones of Strategic Anti-Corruption Roadmap 2021-2030. Detailed PowerPoint slides attached.*	**Noted the status and directed as follows:** • **share weightage for proactive investigation with DoPE, DoPS and others to integrate into their respective interventions and targets.** • **ensure distinction on the TAT for DoI and ROs considering the substantial improvement from ROs.** • **strengthen performance matrix by linking TAT and running days with other targets of the respective**

		Departments/Divisions/ROs. • **include assumptions for every target to ascertain informed decision.** • **ensure that the budgets for the Departments/Divisions/ROs are on incremental trend with the enhancement of targets.** • **include indicators for LEAs from the perspective of responsiveness to ATRs, systemic recommendations, and disciplinary actions.** • **ensure that every Departments/Divisions/ROs have some activities towards addressing low scoring indicators in the ACA Strengthening Initiative Assessment and other related findings.**
10	Update on the IAACA membership – PPD *PPD sought directive from the Commission to seek advice from the MoFAET to whether formalize the membership or withdraw given the emerging cost implications in attending the events hosted by the IAACA.*	**Directed PPD to seek formal advice from the MoFAET to either renew the membership or withdraw, explaining about the chronology and emerging cost implication to attend the events organized by the IAACA. While the ACC has benefited from the programs hosted by IAACA, the emerging cost associated with the programs is a concern.**
11	Article publication in the BNLI Journal – PPD	**Deferred**

Commissioner **Commissioner** **Chairperson**